

25STCV13352 25STCV13352

County: los-angeles

Division: Civil Law and Motion

Department: 729

Hearing date: 2026-08-11

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Case Number: 25STCV13352 Hearing Date: August 11, 2026 Dept: 729

Superior

Court of California

County

of Los Angeles

DEPARTMENT 729

TENTATIVE

RULING

REYES ENERGY CORPORATION,

vs.

J.N. GREASE SERVICES, INC., et al.

Case

No.: 25STCV13352

Hearing Date: August 11, 2026

The Court denies Plaintiff's default
judgment packet.

The Court sets a hearing on an order
to show cause why the complaint should not be dismissed and/or Plaintiff's
counsel sanctioned \$250 for failing to enter default judgment (California Rule

of Court, rule 3.110(h)) on October 9, 2026, at 8:30 AM in Department 729 at Stanley Mosk Courthouse for the following reasons:

1. No

DOE dismissal.

2. Plaintiff

submits two separate CIV-100s and JUD-100s for Defendants, when one document for each, stating both Defendants will do.

3. Complaint

does not state damages sought in the Prayer of the complaint.

4. No

declaration by Plaintiff for prove-up of damages; attorney declaration is not a declaration of a percipient witness sufficient to prove up the damages sought. Exhibits in support of damages do not have sufficient foundation.

5. Declaration

of attorney does not state the location of signature. If declaration is signed outside the state of California, it must be expressly made "under penalty of perjury under the laws of the state of California;" if not, it is inadmissible and cannot be considered. (Kulshrestha v. First Union Commercial Corp. (2004) 33 Cal.4th 601, 618.)

6. Attorneys'

fees sought are not calculated per Local Rule 3.214(a) for a default case.